

25STCV37383 25STCV37383

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Division: Civil Law and Motion
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Case Number: 25STCV37383 Hearing Date: August 11, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

SARAH PETERSON,

Plaintiff,

vs.

MICHAEL RABINOWITZ, et al.,

Defendants.

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CASE NO.: 25STCV37383

[TENTATIVE] ORDER DENYING MOTION FOR RELIEF

Dept. 506

8:30 a.m.

August 11, 2026

On

December 22, 2025, Plaintiff Sarah Peterson filed this action against Defendant Jason Elia and others, and on March 13, 2026, she filed a first amended complaint.

On

May 18, 2026, Defendant filed a demurrer and a motion to strike.

On

July 22, 2026, Defendant filed a motion for relief under Code of Civil Procedure section 473. Defendant seeks relief “to correct a procedural misstep: filing responsive pleadings that included a personal jurisdiction challenge by demurrer without simultaneously moving to quash under § 418.10.”

DISCUSSION

The Court may relieve a party from a judgment, dismissal, order, or other proceeding taken against them that was the result of mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).) The application for relief must be made within a reasonable time, not to exceed six months, after

the judgment. (Ibid.) When the default or dismissal was caused by counsel's mistake, inadvertence, surprise, or neglect, the Court must grant relief. (Ibid.) "[T]he purpose of the mandatory relief provision under section 473, subdivision (b) is achieved by focusing on who is to blame, not why. Indeed, in many cases, the reasons for the attorney's mistake, inadvertence, surprise, or neglect will be irrelevant; that is because . . . the mandatory relief provision entitles a party to relief even when his or her attorney's error is inexcusable." (Martin Potts & Associates, Inc. v. Corsair, LLC (2016) 244 Cal.App.4th 432, 439.)

A. Defendant Is Not Entitled to Mandatory Relief.

The Court must grant relief from any "(1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client" when the request is accompanied by a declaration attesting to an attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).)

Defendant does not seek relief from default, judgment, or dismissal.

B. Defendant Is Not Entitled to Discretionary Relief.

A party may seek relief "from a judgment, dismissal, order, or other proceeding taken against the party" through mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).)

No judgment, dismissal, order, or other proceeding has been taken against Defendant. Even under a broad view of "proceeding," "the statute does not offer relief from mandatory deadlines deemed jurisdictional in nature." (Maynard v. Brandon (2005) 36 Cal.4th 364, 372.) "Failure to make a motion [to quash] under this section at the time of filing a demurrer or motion to strike constitutes a waiver of the issues of lack of personal jurisdiction." (Code Civ. Proc., § 418.10, subd. (e)(3).) A general appearance relinquishes all objections based on lack of personal jurisdiction or defective process or service of process,

“even if the defendant is unaware that a jurisdictional objection is available.” (In re Marriage of Obrecht (2016) 245 Cal.App.4th 1, 8.)

Furthermore, counsel’s mistake, inadvertence, or general neglect was not excusable. Counsel broadly explains that “[t]hrough [their] oversight and mistake,” no contemporaneous motion to quash service of summons was filed with the demurrer. (Noy Decl. ¶ 5.) Only later did counsel “recognize[] § 418.10 provides the proper vehicle to challenge personal jurisdiction and avoid any potential waiver concern.” (Noy Decl. ¶ 5.)

“A party who seeks relief under section 473 on the basis of mistake or inadvertence of counsel must demonstrate that such mistake, inadvertence, or general neglect was excusable because the negligence of the attorney is imputed to his client and may not be offered by the latter as a basis for relief.’ [Citation.]” (Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258.) “In examining the mistake or neglect, the court inquires whether ‘a reasonably prudent person under the same or similar circumstances’ might have made the same error.” (Bettencourt v. Los Rios Community College Dist. (1986) 42 Cal.3d 270, 276.) “The distinction in the statute noted by the Supreme Court’s use of the term ‘reasonably prudent person’ describes the obvious intent of the Legislature to mandate relief only from mistakes fairly imputable to the client, i.e., mistakes anyone could have made.” (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 682 (Garcia).) For example, “[t]he erroneous substitution of the word ‘against’ for the phrase ‘in favor of’ is a clerical or ministerial mistake that could have been made by anybody.” (Zamora, supra, 28 Cal.4th at p. 259.)

Under the “reasonably prudent person standard,” an attorney is given the benefit of relief only for mistakes that might ordinarily be made by a person with no special training or skill. (Garcia, supra, 58 Cal.App.4th at p. 684.) “[A]n attorney acting within his or her professional capacity is held to a different standard of care and may not be excused by section 473 from errors occurring during the discharge of strictly professional duties.” (Ibid.) “Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively

eviscerate the concept of attorney malpractice.” (Id. at p. 682.)

“The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief. [Citation.] That is the case here.” (Younessi v. Woolf (2016) 244 Cal.App.4th 1137, 1146-1147 [no discretionary relief for counsel who forgot to sign forms and missed deadlines], internal quotation marks omitted.)

CONCLUSION

The motion is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 11th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court